

26STCV06987 26STCV06987

County: los-angeles

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV06987

CSP

SECURITY, INC. vs MHR NIGHTLIFE, LLC

September

28, 2026

8:30

AM

NATURE OF PROCEEDINGS:

DEFENDANT MHR NIGHTLIFE, LLC'S NOTICE OF DEMURRER TO COMPLAINT. DEFENDANT MHR NIGHTLIFE, LLC'S MOTION TO

STRIKE PORTIONS OF PLAINTIFF'S COMPLAINT.

RULING:

The Court sustains the
unopposed Demurrer, with 20 days' leave to amend.

The Court grants the unopposed
Motion, with 20 days' leave to amend.

Defendant MHR Nightlife, LLC to give notice.

I.

BACKGROUND

On March 4, 2026, CSP
SECURITY, INC. (Plaintiff) filed a Complaint against MHR NIGHTLIFE, LLC
(Defendant), listing Causes of Action for:

1.

BREACH OF CONTRACT;

2.

ACCOUNT STATED; and

3.

OPEN BOOK ACCOUNT.

Plaintiff alleges that Defendant
hired Plaintiff to provide security services pursuant to a signed contract, but
Defendant terminated the services without giving the required 30 days' notice,
and did not pay after the invoices, causing damages including already paid
personnel.

On August 12, 2026, Defendant
filed the Demurrer to the First, Second and Third Causes of Action of the
Complaint, and Motion to Strike allegations regarding attorneys' fees,
interest, and financing, on grounds including that Plaintiff failed to plead that
it was licensed in compliance with law and a contractual condition and judicial
notice shows that it was not licensed.

Plaintiff has filed no

Opposition to these matters.

II.

LEGAL STANDARD

Demurrers are to be sustained where a pleading fails to plead adequately any essential element of the cause of action. (*Cantu v. Resolution Trust Corp.* (1992) 4 Cal.App.4th 857, 879-880.) A complaint does not necessarily need to be a model of pleading but needs sufficient factual allegations. (E.g., *State v. The Superior Court* (2001) 87 Cal.App.4th 1409, 1411.)

The grounds for a motion to strike are that the pleading has irrelevant, false or improper matter, or has not been drawn or filed in conformity with laws. (Code Civ. Proc., § 436.) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (*Ibid.*, § 437.)

Rarely should judges sustain demurrers to initial complaints without giving leave to amend. (*Tarrar Enterprises, Inc. v. Associated Indemnity Corp.* (2022) 83 Cal.App.5th 685, 689.) Courts generally allow at least one time to amend a complaint, after sustaining a demurrer, even without any request for leave to amend. (*McDonald v. Superior Court* (1986) 180 Cal.App.3d 297, 303.)

“Evidence Code section 456 provides the trial court must indicate for the record if it denies a request for judicial notice.” (*Aaronoff v. Martinez-Senftner* (2006) 136 Cal.App.4th 910, 919 [“The record contains no indication the request for judicial notice was denied. We conclude the trial court took judicial notice of the requested matter, particularly in light of its decision.”].)

III.

ANALYSIS

A. Breach
Of Contract.

First, Defendant

maintains that Plaintiff fails to plead it was a licensed contractor, where the Bureau of Security and Investigatory Services has confirmed Plaintiff was operating unlawfully. (See Bus. & Prof. Code, §§ 7581, 7582, 7582.3.)

Second, Defendant asserts

that Plaintiff fails to attach the Service Agreement or sufficiently set forth the terms and their legal effect.

Third, Defendant contends

that Plaintiff fails to allege other claim elements, including performance or excuse for nonperformance, breach, and damages that are limited to lost performance.

The general rule, with exceptions, is that courts will not

lend their assistance to enforcement of contracts that are illegal or against public policy. (Schaffter v. Creative

Capital Leasing Group, LLC (2008) 166 Cal.App.4th 745, 755; Dunkin v. Boskey (2000) 82 Cal.App.4th 171, 183.) Whether an illegal agreement is enforceable depends on the

particular circumstances, and a variety of factors, including relative moral

fault, moral turpitude, unjust enrichment and the policy of the violated law. (Wald v. Truspeed Motorcars, LLC (2010) 184 Cal.App.4th 378, 390-391.) “[C]ourts recognize varying forms and degrees of

illegality, and that the particular facts of the case must be considered before remedy is refused.” (Kyablue v. Watkins

(2012) 210 Cal.App.4th 1288, 1292.) Generally, illegal contracts are void, but, in compelling cases, they may be enforced to avoid unjust enrichment of

defendants, and a disproportionately harsh penalty upon plaintiffs, depending

upon factors including policy, the illegality and the particular facts. (Arya Group, Inc. v. Cher (2000) 77 Cal.App.4th 610, 615.)

Complainants alleging

breach of contract are not required to attach the contract, or to plead terms verbatim. (Miles v. Deutsche Bank Nat’l

Trust Co. (2015) 236 Cal.App.4th 394, 402 [disapproving law to the contrary].) “In an action based on a written contract, the plaintiff may plead the legal effect of the

contract rather than its precise language.” (Ochs v. PacifiCare of Cal. (2004) 115 Cal.App.4th 782, 795. Accord Construction Protective Services, Inc. v. TIG Specialty Ins. Co.

(2002) 29 Cal.4th 189, 198-199.) Generally, unless otherwise assented to by

parties, an invoice alone is not a contract, but instead a statement of the nature, quantity, and the cost or price of the things invoiced. (India Paint

& Lacquer Co. v. United Steel Prods. Corp. (1954) 123 Cal.App.2d 597,

608; (C9 Ventures v. SVC-West, L.P. (2012) 202 Cal.App.4th 1483, 1502; Transwestern Pipeline Co. v. Monsanto Co. (1996) 46 Cal.App.4th 502, 516 [party never expressed assent to invoice terms].)

Additionally, it is permissible to allege the conclusion of performance of a condition, if not contradicted by specific facts. (Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 174.) "The pleading of excuse or waiver of performance of conditions precedent requires specific not general allegations." (Careau & Co. v. Sec. Pac. Bus. Credit (1990) 222 Cal.App.3d 1371, 1391.) "Normally the question of whether a breach of an obligation is a material breach, so as to excuse performance by the other party, is a question of fact." (Brown v. Grimes (2011) 192 Cal.App.4th 265, 277.)

General allegations

stating that defendants violated a contract are insufficient, and instead pleaders must state facts showing a breach. (Levy v. State Farm Mutual Automobile Ins. Co. (2007) 150 Cal.App.4th 1, 5-6.) "[A] pleader must state with certainty the facts constituting a breach of contract." (Melican v. Regents of Univ. of Cal. (2007) 151 Cal.App.4th 168, 174. But see Levy v. State Farm Mut. Auto. Ins. Co. (2007) 150 Cal.App.4th 1, 5 ["Facts alleging a breach, like all essential elements of a breach of contract cause of action, must be pleaded with specificity."].)

A cause of action for

damages for breach of contract includes the element that defendant's breach caused the plaintiff's damage. (Orcilla v. Big Sur, Inc. (2016) 244 Cal.App.4th 982, 1004–1005 [concluding that plaintiffs failed to plead causation of contract damages, such that the court properly sustained a demurrer without leave to amend].) Complainants must allege a causal connection between the contract breach and damages sustained. (McDonald v. John P. Scripps Newspaper (1989) 210 Cal.App.3d 100, 104-106 [demurrer to complaint sustained without leave to amend, because alleged facts showed that the plaintiff could not show damage caused by the contract breach].)

General allegations

suffice to plead general (direct) contract damages. (Moore v. Centrelake Med. Grp., Inc. (2022) 83 Cal.App.5th 515, 534.) However, special (consequential) damages "must ... be pled with particularity...." (Lewis Jorge Construction Management, Inc. v.

Pomona Unified School Dist. (2004) 34 Cal.4th 960, 975; Greenwich S.F., LLC v. Wong (2010) 190 Cal. App. 4th 739, 760. Cf. Shook v. Pearson (1950) 99 Cal.App.2d 348, 352 ["there is wholly lacking the allegation that defendants had knowledge of or in any way had notice of the fact that plaintiff was expending any sum in obtaining said contracts or in anticipation of additional contracts. It likewise is not specially averred what items went to make up the sum claimed to have been expended, or that they were necessarily extended with the knowledge of defendants or within the reasonable contemplation of the parties."].)

B. Account
Stated.

Defendant reasons that
this claim fails as being derivative of the First Cause of Action, and the Complaint fails to allege the parties' agreement as to the amount purportedly owed or to be paid.

"When a common count is
used as an alternative way of seeking the same recovery demanded in a specific cause of action, and is based on the same facts, the common count is demurrable if the cause of action is demurrable." (Berryman
v. Merit Property Management, Inc. (2007) 152 Cal.App.4th 1544, 1560.)

To allege an Account

Stated, the Complaint must allege Defendant's agreement to pay the invoiced amounts. (See (Truestone, Inc. v. Simi West Industrial Park
II (1984) 163 Cal.App.3d 715, 725 ["it must appear that at the time of the statement an indebtedness from one party to the other existed, that a balance was then struck and agreed to be the correct sum owing from the debtor to the creditor, and that the debtor expressly or impliedly promised to pay to the creditor the amount thus determined to be owing."]; Block v. D. W. Nicholson Corp. (1947) 77 Cal.App.2d 739, 746 ["An account stated requires that there be an acknowledgment of a previous indebtedness, since such indebtedness constitutes the consideration upon which the new contract is based. It is also required that there be an agreement that the balance is correct, and a promise for the payment of such balance. This promise may be either express or implied."]; H. Russell Taylor's Fire
Prevention Serv., Inc. v. Coca Cola Bottling Corp. (1979) 99 Cal.App.3d
711, 726–727 ["the amount agreed upon must be either specifically stated or readily calculable."].)

C. Open

Book Account.

Defendant again reasons

that a claim fails as being derivative of the First Cause of Action. Also, Defendant contends that the Complaint fails to sufficiently allege the statutory definition of a book account.

The

elements of this Cause of Action are:

Detailed

statement which constitutes the principal record of one or more transactions between a debtor and a creditor arising out of a contract or some fiduciary relation;

shows the

debits and credits in connection therewith, and against whom and in favor of whom entries are made;

entered in the

regular course of business as conducted by such creditor or fiduciary;

kept in a

reasonably permanent form and manner; and

in a bound

book, on a sheet or sheets fastened in a book or to backing but detachable therefrom, on a card or cards of a permanent character, or is kept in any other reasonably permanent form and manner.

(Code Civ. Proc., § 337a; Tsemetzin v.

Coast Federal Savings & Loan Assn. (1997) 57 Cal.App.4th 1334, 1343; Eloquence Corp. v. Home Consignment Center (2020) 49 Cal.App.5th 655, 665 [Generally, contracts are not an open account, unless otherwise agreed by the parties].)

IV.

CONCLUSION

The failure to file a proper and timely opposition in trial court creates a waiver of the issues on any appeal. (Bell v. Am. Title Ins. Co. (1991) 226 Cal.App.3d 1589, 1602; Cabrini Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693.) "A failure to oppose a motion may be deemed a consent to the granting of the motion." (Cal. Rules of Court, rule 8.54(c).)

There being no Opposition, the Court has no issues for consideration.

Therefore, the Court sustains the Demurrer and grants the Motion, based upon all of their page numbers.